

26PSCV01327 26PSCV01327

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Case Number: 26PSCV01327 Hearing Date: August 19, 2026 Dept: H

Fundora v. San

Gabriel Valley Mosquito & Vector Control District, et al., Case No. 26PSCV01327

ORDER ON

DEMURRER

Defendants' Demurrer to

Plaintiff's Complaint is SUSTAINED, without leave to amend.

Background

On

December 3, 2024, Plaintiff Oscar Fundora ("Plaintiff") alleges that he sustained injuries and damages as a result of Defendant Hendrick Manual Pena's ("Defendant") negligent conduct arising from a motor vehicle collision.

On April

10, 2026, Plaintiff filed a complaint asserting a motor vehicle cause of action against Hendricks Manuel Pena and San Gabriel Valley Mosquito & Vector Control District (collectively, "Defendants"), as well as Does 1-25.

Legal Standard

A

demurrer may be made on the grounds that the pleading, inter alia, does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905 [citations omitted].) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) “[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction placed on an instrument pleaded therein, or facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 [citations omitted].)

Request for Judicial Notice

Defendants' unopposed request for judicial notice of Plaintiff's Complaint filed in this case is GRANTED pursuant to Evidence Code Section 452 subsection (d).

Declaration of Stephen Mihalovits

The Court will consider the Declaration of Stephen Mihalovits as it pertains to the authentication of the exhibit sought to be judicially noticed and to the meet-and-confer efforts between counsel. The Court will not consider the balance of the declaration, as well as those portions of the demurrer referencing same, as improper at this juncture.

Discussion

Defendant demurs, pursuant to Code of Civil Procedure section 430.10, subdivision(e), to Plaintiff's complaint, on the basis that it fails to state facts sufficient to constitute a cause of action.

Merits

Defendant contends that Plaintiff's cause of action for motor vehicle fails because Plaintiff did not timely comply with the claim presentation requirements of the California Government Claims Act.

The Government Claims Act governs all claims for money or damages against local public entities, subject to specific statutory exceptions. A lawsuit that seeks monetary damages from a public entity must be preceded by the presentation of a claim to the public entity and action on the claim by the Claims Board. (Govt. Code §§ 905, 911.2, 945.4; *County of Los Angeles v. Superior Court* (2005) 127 Cal.App.4th 1263, 1267.) Presentation of the claim and action by a Claims Board action on or rejection of the claim are conditions precedent to suit. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1245.) This rule serves the policy underlying the claims statutes by (1) providing public entities with sufficient information to allow them to investigate and evaluate the merits of the claim while the evidence is still fresh and witnesses are available; (2) affording the opportunity to settle claims without the expenditure of public funds on litigation; and (3) informing the public entity of potential liability so it can better prepare for the upcoming fiscal year. (See *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1776.)

Defendant argues that Plaintiff never presented a claim for damages to it for his alleged personal injuries suffered in the subject accident and that, as such, any personal or bodily-injury claim is time-barred under Government Code section 911.2. Plaintiff contends that the Court must accept as true the complaint's allegation of compliance with applicable claims presentation requirements at the demurrer stage.

Having reviewed the exhibit attached to the complaint, the Court determines that Defendant's position is well taken. "Exhibits attached to the complaint take precedence to the extent they contradict allegations in the complaint." (*Bank of New York Mellon v. Citibank, N.A.* (2017) 8 Cal.App.5th 935, 943.) On December 18, 2024, Plaintiff submitted a claim form under California Government Code section 910 stating only that the "front part of [Plaintiff's] car is damaged" and seeking \$784.47. Plaintiff did not allege personal or bodily injury in his claim form. Therefore, Plaintiff's claims for those damages are barred.

Moreover, Plaintiff does not identify how this deficiency could be cured by amendment. As such, the demurrer is sustained without leave to amend.

Conclusion

Accordingly, Defendants' demurrer to the complaint is sustained without leave to amend.